

25STCV35770 25STCV35770

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 25STCV35770 Hearing Date: August 24, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

24, 2026 TRIAL

DATE: Not set

CASE: Surinderpal S. Arora, et al. v. Daljeet

S. Singh, et al.

CASE NO.: 25STCV35770

DEMURRER

TO COMPLAINT

MOTION

FOR PRELIMINARY INJUNCTION

Plaintiffs, Surinderpal

S. Arora and Sharankpreet K. Arora, are spouses and co-own a real estate

investment partnership formed with Defendants, Daljeet Singh and Gurpreet

Bindra. A dispute developed between the

parties resulting in a civil action (Case No. 18STCV10316). The parties eventually reached a settlement

agreement in the underlying case in July 2018 with the intent to wind up the

partnership and dissolve the parties' joint ownership of two properties. Plaintiffs now bring this action against

Defendants based on post-settlement conduct.

Before the court are two motions: (1) Plaintiffs' motion for preliminary injunction; (2) Defendants' demurrer to the Complaint. The court begins by addressing the demurrer.

I. DISCUSSION RE DEMURRER

A. Background

On December 8, 2025, Plaintiffs filed a Complaint against Defendants for breach of fiduciary duty, breach of contract, breach of implied covenant of good faith and fair dealing, conversion, accounting, declaratory relief, imposition of constructive trust, and civil theft (Penal Code §496).

On March 16, 2026, Defendants filed this demurrer to the Complaint.

On July 21, 2026, the trial court in Case No. 18STCV10316 found these cases were not related within the meaning of California Rules of Court, rule 3.300(a).

On August 11, 2026, Plaintiff filed an opposition.

On August 17, 2026, Defendants filed a reply.

B. Judicial Notice

Defendants request judicial of eight documents connected to the underlying action. The request is GRANTED.

C. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action.¿ (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)¿ When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true.¿ (Nolte v. Cedars-Sinai

Medical Center (2015) 236 Cal.App.4th 1401, 1406.)” “Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice.” (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.)”

D. Application

Defendants

demur to the entire Complaint on the ground it raises the same claims pending in Case No. 18STCV10316 and which were disposed of under the parties' February 20, 2024 Settlement Agreement.

The demurrer

is meritorious. Under Civil Code section 1542, “[a] general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release and that, if known by him or her, would have materially affected his or her settlement with the debtor or released party.” However, a “court-approved settlement in a prior suit precludes subsequent litigation on the same cause of action. Res judicata bars not only issues that were raised in the prior suit but related issues that could have been raised.” (Villacres v. ABM Industries Inc. (2010) 189 Cal.App.4th 562, 569.) An obligation is extinguished by a release therefrom given to the debtor or the released party by the creditor or releasing party, upon a new consideration, or in writing, with or without new consideration. (Civ. Code, § 1541.)

Here, the

February 20, 2024 Settlement Agreement is referenced throughout the Complaint. The Settlement Agreement provides, in relevant

part, “except for the obligations under this settlement, the parties release all claims against one another and their agents and representatives from all claims that were or could have been brought, in this case and waive the application of Civil Code section 1542.”

This contractual language effectively bars Plaintiffs claims in this action by res judicata. Plaintiffs do not address this contractual language and therefore concedes the point.

E. Conclusion

The
demurrer is SUSTAINED. Leave to amend is
DENIED.

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II. DISCUSSION RE MOTION FOR PRELIMINARY INJUNCTION

A. Background

On June 10, 2026, Plaintiffs filed this motion for
preliminary injunction.

On July 10, 2026, Defendants filed an opposition.

On July 16, 2026, Plaintiffs filed a reply

B. Application

The
motion is moot. "A preliminary
injunction is an interim remedy designed to maintain the status quo pending a
decision on the merits. [Citation.] It is not, in itself, a cause of action.
Thus, a cause of action must exist before injunctive relief may be granted. [Citation.] Accordingly, where the complaint fails to
state a cause of action an order granting a preliminary injunction must be
reversed." (Major v. Miraverde
Homeowners Assn. (1992) 7 Cal.App.4th 618, 623.) Here, the court has sustained Defendants'
demurrer to the entire Complaint. As
such, there is no cause of action to support injunctive relief.

C. Conclusion

The motion
for preliminary injunction is MOOT.

III. DISPOSITIONS

The
demurrer is Sustained. Leave to amend is
Denied.

The motion for preliminary
injunction is Moot.

Defendants are
ordered to give notice, unless waived.

Dated: August 24, 2026

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¿ Brock T. Hammond

¿ Judge of the Superior
Court¿